

Software Support Agreement

The agreement signed between YoFinder Ltd and each user of Magnify. It gives contractual effect to the service standards set out in the Software Support SLA.

PROVIDER	TIN	PRODUCT	FORM
YoFinder Ltd	149047989	Magnify	Template

Draft for legal review. This is a template contract binding YoFinder Ltd to a user. It should be reviewed by a legal adviser before it is offered for signature.

THE PARTIES

	PROVIDER	USER
Name	YoFinder Ltd	
TIN	149047989	
Address	Kinyinya, Gasabo, Kigali City	
Contact	+250 783 714 720 · info@yofinder.com	
Premises covered	—	
Terminals covered	—	
Start date		

1 · WHAT IS SUPPLIED

YoFinder Ltd licenses Magnify — currently version 1.1.50, and any later version certified by RRA — to the User for the premises and terminals listed above, and supports it on the terms below.

Magnify operates as a Certified Invoicing System connected to a Sales Data Controller. The User is the taxpayer and remains responsible for its own tax obligations; YoFinder Ltd supplies and supports the software by which invoices are issued.

The licence

- Non-exclusive, non-transferable, and limited to the premises and terminals listed above.
- Additional premises or terminals require a written variation and may carry additional charges.
- The User will not copy, modify, decompile, reverse engineer, or attempt to derive the source code of Magnify, nor permit another to do so.
- The User will not alter the software, its database or its fiscal configuration except through the application itself.
- Magnify and all intellectual property in it remain the property of YoFinder Ltd. The User's data remains the User's — see section 6.

2 · SUPPORT

Hours. 08:00 to 23:00 Central Africa Time (Kigali), seven days a week, including public holidays.

Contact. +250 783 714 720 for anything urgent; info@yofinder.com otherwise. A terminal out of service should always be reported by phone.

Those two are the support channels, and the times below run from a report made through one of them. A message sent to an individual's personal phone or social account may well be answered as a courtesy, but it does not start the clock – a fault reported where no one is on duty to see it cannot be one YoFinder Ltd has failed to respond to.

SEVERITY	MEANING	FIRST RESPONSE	TARGET RESOLUTION
Critical	Cannot trade – bills cannot be settled or receipts issued, for a reason within Magnify	30 minutes	4 hours
High	Trading continues, an important function unavailable	2 hours	8 support hours, or by 12:00 the next support day where reported after 18:00
Medium	Impaired, with a workaround	1 business day	5 business days
Low	Cosmetic, or a request	2 business days	By agreement

Times are measured within support hours from when the fault is reported. They are **targets pursued with reasonable endeavours, not warranties**. Support is provided remotely where possible and on site at the User's premises within Kigali where it is not.

When the clock stops

Time does not count toward the times above while YoFinder Ltd is waiting on information or a decision reasonably requested from the User, on access to the premises where access was **requested during support hours and with reasonable notice**, on restoration of anything excluded under section 3, or on restoration of an outage at a hosting provider used by YoFinder Ltd.

Arriving unannounced does not stop the clock. The User is under no obligation to admit anyone outside support hours, or at any time without prior arrangement, and a refusal in those circumstances is not a denial of access.

On-site attendance

Magnify is corrected in software. A fault in it is diagnosed and fixed remotely, which is why support is remote first – not to avoid attending, but because that is how the repair is actually made, and it is faster than a journey across Kigali.

Attendance within Kigali during support hours, to diagnose or correct a software fault, is included: **one visit for each fault** where remote work cannot resolve it. Where a visit establishes that the cause is hardware, power or the internet connection, that item remains outside cover under section 3 and the visit may be charged at rates agreed in advance – as may repeat visits for the same cause. Attendance outside Kigali is by prior arrangement and at the User's cost.

Where a critical fault is still unresolved at 23:00, and remote work cannot conclude it, YoFinder Ltd will attend the premises from **07:00** the

following morning. The undertaking is bounded at the night rather than left open, so that it is one the User can rely on.

YoFinder Ltd does not attend outside support hours except by prior arrangement, charged at rates agreed in advance. The User remains responsible for the security of its premises and for any obligation it owes its own staff in respect of their working hours.

3 · WHAT SUPPORT DOES NOT COVER

- The User's internet connection, and faults arising from its loss
- Computers, tablets, printers, cabling, power supply and other hardware
- Electrical supply, including outages and damage caused by them
- Third-party software or services on the same equipment
- The Sales Data Controller and RRA's systems
- Loss or corruption caused by unauthorised changes to the software, database or configuration
- Training beyond initial handover, unless separately agreed
- Data entry, including menu setup and stock counting

A certified system stops trading when it cannot reach the Sales Data Controller. That is required by the specification and is not a fault in Magnify.

Outages at a hosting or infrastructure provider used by YoFinder Ltd are **not** excluded from cover — restoring service remains YoFinder Ltd's responsibility — but the times in section 2 are suspended for their duration.

4 · THE USER'S OBLIGATIONS

- Report faults promptly, by phone where urgent
- Allow remote access when asked, and access to the premises where attendance is needed
- Maintain a working internet connection and functioning hardware
- Keep supervisor credentials secure
- Make no change to the software, its database or its fiscal configuration except through the application
- Install updates required for continued compliance
- Ensure the fiscal details registered in the software — TIN, MRC and outlet identifiers — are correct and current

Where a fault arises from these obligations not being met, the response times in section 2 do not apply, though YoFinder Ltd will still assist.

5 · UPDATES

A certified installation does not update automatically. Each version is installed deliberately, so that the installation cannot move past the version approved by RRA.

Where RRA requires a change for continued compliance, YoFinder Ltd will supply the updated version and the User will install it promptly. Such a change carries critical priority for response and communication; the version is delivered within the timeframe RRA sets.

6 · DATA

Set out at length because the User is the data controller in law and

needs to know where its data goes.

Roles

The User is the **data controller**. YoFinder Ltd is a **data processor**, and processes personal data only on the User's documented instructions, which this agreement constitutes, and only to provide and support Magnify.

Where the data is held

Magnify is not one program on one machine. A waiter's tablet, each till and the manager's dashboard are separate devices that have to show the same bill at the same moment — an order typed at a table must appear in the kitchen and on the manager's screen as it is entered. What makes that possible is a single shared database every device connects to. It is the point through which the parts of Magnify talk to one another, and it is where the User's records are kept.

That database is operated for YoFinder Ltd by Neon, on infrastructure in **London, United Kingdom**, and the application itself is served by Vercel. Both are established providers, chosen for continuous backup and point-in-time recovery — a restaurant's sales records cannot be allowed to depend on one machine in one building. The User authorises the following sub-processors by signing this agreement:

SUB-PROCESSOR	PURPOSE	LOCATION
Neon	Database hosting	London, United Kingdom (AWS eu-west-2)
Vercel	Application hosting	Outside Rwanda
Google	Marketing suggestions, only when a manager uses that feature	Outside Rwanda

YoFinder Ltd will give the User not less than 30 days' notice before adding or changing a sub-processor, and the User may terminate under section 10 if it objects.

The Marketing feature

Where a manager uses the Marketing feature, aggregated business figures — revenue totals, order counts and dish performance — are sent to Google's generative AI service to produce campaign suggestions. **No personal data is sent:** no customer names, no staff names, no individual transactions. The feature is used only when a manager chooses to use it.

Disclosure

YoFinder Ltd discloses the User's data to no one other than the sub-processors above, except where required by law or by RRA.

Security and breaches

YoFinder Ltd maintains appropriate technical and organisational measures to protect the data. Credentials are stored as one-way hashes and cannot be recovered.

YoFinder Ltd will notify the User of a **confirmed** personal data breach affecting the User's data without undue delay and, where reasonably practicable, **within 24 hours** of confirming it — with what is known at that time, so that the User can meet its own notification obligations. Investigation continuing does not delay the notice.

Confirmed, rather than first suspicion, and for the same reason section 6 of the Software Support Undertaking applies that standard to fiscal defects reported to RRA: a notice sent on every unexplained line in a log tells the User nothing it can act on, and in time would be ignored.

Return and deletion

On termination YoFinder Ltd will supply an export of the User's data as CSV and PDF within 30 days, and will delete personal data held for the User within 30 days of that export.

Fiscal records are excepted from deletion. Receipts, receipt numbering and cash movements are retained as the law requires and are not deleted by any function available to a user.

Compliance

Each party will comply with Law No. 058/2021 relating to the protection of personal data and privacy, and with any implementing instruction of the National Cyber Security Authority.

7 · WHAT THE REPORTS ARE, AND ARE NOT

Magnify calculates theoretical stock, recipe costs, margins and profitability from the information recorded in it: the purchases entered, the recipes configured, the sales rung up, the wastage and transfers logged. Those calculations are only ever as accurate as that information.

Theoretical stock is a management figure, not a physical stock audit. Where a recipe states a portion size different from what the kitchen actually serves, or where a dish has no recipe configured at all, the theoretical figure will not match a physical count – and the difference is a reflection of the recorded data, not of a defect in Magnify. A physical count remains the User's own responsibility.

Profitability, margin and food-cost figures are calculations on that same recorded data. YoFinder Ltd does not warrant that use of Magnify will increase revenue, reduce cost, eliminate stock variance, prevent theft or produce any particular business result, and these figures are not a substitute for the User's own accounting or audit.

The User remains responsible for the accuracy and completeness of the recipes, costs, prices, quantities and other information it records, and should review any figure before relying on it for a statutory, tax or accounting purpose.

8 · CHARGES

Support is provided for _____ per
_____, **exclusive of VAT**, payable
_____ in advance.

Invoices are due within 30 days. Where an invoice remains unpaid 30 days after its due date, YoFinder Ltd may suspend support on 7 days' written notice until it is paid. Suspension is not termination, and the licence continues during it.

Charges may be reviewed annually on 60 days' written notice. Where the User does not accept a revision, it may terminate under section 10 without penalty.

Attendance outside Kigali, work outside support hours, and services excluded under section 3 may be charged separately, at rates agreed in advance.

9 · LIABILITY

The response and resolution times in section 2 are targets pursued with reasonable endeavours. They are not warranties, and failure to meet one does not of itself create liability.

Neither party is liable to the other for loss of profit, loss of trade, loss of data, or other indirect loss. YoFinder Ltd is not liable for **any penalty, interest or assessment imposed on the User by RRA**, nor for the User's own compliance with its tax obligations.

YoFinder Ltd's **total liability** under or in connection with this agreement, taken together across every claim however many there are, is limited to the support charges paid by the User in the twelve months before the event giving rise to the claim. This is one ceiling for the agreement as a whole, not a fresh one for each incident. Nothing here limits liability where the law does not permit it to be limited.

Events beyond either party's control

Neither party is in breach where performance is prevented by an event beyond its reasonable control, including power failure, failure of a telecommunications or internet provider, an act of a public authority, civil disturbance, fire, flood or epidemic. The affected party will notify the other and resume as soon as it is able. Where such an event continues beyond 60 days, either party may terminate on written notice.

10 · TERM AND TERMINATION

This agreement begins on the start date above and continues for an initial term of **12 months**, and thereafter until terminated.

After the initial term, the **User** may terminate on 30 days' written notice. **YoFinder Ltd** may terminate on 90 days' written notice, and in no case on shorter notice than it owes RRA in respect of that installation.

Termination for repeated failure

Repeated failure means three or more Critical or High targets missed within any rolling 90-day period, each notified to YoFinder Ltd in writing at the time it occurred.

On repeated failure the User may escalate to the Managing Director and, if the failures continue, terminate on 30 days' written notice without penalty, at any time including during the initial term.

Either party may terminate immediately where the other commits a material breach and fails to remedy it within 30 days of written notice, or becomes insolvent.

11 · GENERAL

Confidentiality

Each party will keep confidential the other's non-public information and use it only for this agreement. This does not apply to information already public, independently obtained, or required to be disclosed by law or by RRA. It survives termination by three years.

Assignment

Neither party may assign this agreement without the other's written consent, which will not be unreasonably withheld — save that YoFinder Ltd may assign to a successor of its business on notice, provided the successor is certified by RRA.

Precedence

Where this agreement and the Software Support SLA conflict, this agreement prevails.

Entire agreement

This agreement and the Software Support SLA are the whole of what is agreed between the parties on this subject, and replace any earlier understanding. A variation is effective only in writing, signed by both.

Notices

Notices are given in writing to the addresses on the first page, by hand, by courier, or by email to the addresses stated. An emailed notice is treated as received on the next business day.

Governing law

This agreement is governed by the laws of the Republic of Rwanda. The parties will attempt to resolve any dispute in good faith before resorting to the courts of Rwanda.

SIGNATURES

FOR YOFINDER LTD	FOR THE USER
Name	Name
Position	Position
Signature	Signature
Date	Date

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+250 783 714 720 · info@yofinder.com
For legal review before issue.